

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**-----X
NAKYE GUY,

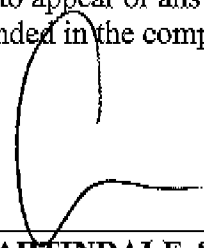
Plaintiff

- against -

THE CITY OF NEW YORK,
P.O. JASON LOPEZ (SHIELD #16092)
P.O. JOHN DOE #1
P.O. JOHN DOE #2Defendant.

-----XIndex No. _____
Purchased _____
Plaintiff designates The Bronx
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE NAMED DEFENDANT:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 19, 2021

MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

OFFICER JASON LOPEZ (SHIELD #16092)

44TH PRECINCT

2 E. 169th Street,
Bronx, NY 10452

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****NAKYE GUY****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
P.O. JASON LOPEZ (SHIELD #16092)
P.O. JOHN DOE #1
P.O. JOHN DOE #2****Defendant.**

Plaintiff NAKYE GUY, by his attorneys MARTINDALE & ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of the Defendant, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief, all New York Police Department (hereinafter referred to as "NYPD") officers mentioned herein, including P.O. JASON LOPEZ (hereinafter referred to as "LOPEZ"), P.O. JOHN DOE #1 (hereinafter referred to as "DOE #1") and P.O. JOHN DOE #2 (hereinafter referred to as "DOE #2") were, at the time of the occurrence, police officers of Defendant

CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.

3. At all times relevant herein, Plaintiff NAKYE GUY (hereinafter referred to as "GUY" is a citizen of the United States and a resident of Bronx County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 12:30 am on November 23, 2019, in the vicinity of 1346 Morris Avenue, Bronx, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.
7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.

9. In the early morning of November 23, 2019, GUY was in his vehicle, circling his neighborhood, looking for parking after coming home from a local mechanic shop.
10. After not being able to find parking for some time, GUY double parked and went inside the neighborhood bodega to purchase a snack.
11. Once purchased, GUY got back inside his vehicle and continued looking for parking.
12. At approximately 12:30am GUY parked in a parking space in front of 1377 Morris Avenue, (directly across from his residence), but was not sure if he was too close to a nearby fire hydrant.
13. After a couple of minutes, an unmarked police vehicle pulled up along the right side of GUY's vehicle.
14. Three uniformed officers, including LOPEZ and DOE exited the unmarked police vehicle.
15. The three uniformed officers approached GUY's vehicle and asked him for his identification.
16. Due to the aggressive nature of how they approached his car, GUY got nervous and called his wife Alaina to come downstairs just in case the officers tried to harm him
17. As GUY waited for his wife to come downstairs, GUY showed his identification to LOPEZ, DOE #1 and DOE #2 through his car window.
18. LOPEZ informed GUY he needed to actually take the identification because GUY was under investigation.

19. GUY's wife arrived downstairs and GUY stepped out of his vehicle and handed her his identification for safe keeping.
20. As soon as GUY handed his wife Alaina his identification, LOPEZ, applied a taser shock to GUY's lower back as DOE #1 and DOE #2 slammed GUY to the ground, bruising his upper body.
21. As GUY lay on the ground, facing upwards, he was tasered a second time in his upper left chest by LOPEZ.
22. After being tasered a second time, GUY was then pepper sprayed in his face, causing severe burning and irritation to both of his eyes.
23. Eventually GUY was handcuffed and an ambulance was called to attend to his injuries from the pepper spray..
24. GUY was taken to Bronx Lebanon Hospital via ambulance with a police escort.
25. At the hospital, GUY was treated for eye irritation and had his eyes flushed, and also had two prongs removed from his body from the taser shots he endured at the hands of LOPEZ.
26. GUY was treated and remained at the hospital for approximately 2 hours; after which, he was brought to the 44th Precinct to be photographed and fingerprinted.
27. GUY was subsequently brought to central booking and was arraigned on charges of resisting arrest and disorderly conduct.
28. Bail was not set on the aforementioned charges and GUY was released on his own recognizance at approximately 5:30pm on November 23, 2019.

29. Upon being released, GUY went home but still experienced burning and irritation in both eyes, and back pain from being slammed on the ground by LOPEZ, DOE #1 and DOE #2, so he went back to Bronx Lebanon for further treatment.
30. GUY returned to court on January 9, 2020 and received an adjournment in contemplation of dismissal with immediate sealing; effectively ending the case with a dismissal on that same day.
31. As a result of being attacked and beaten by NYPD officers, including LOPEZ, DOE #1, and DOE #2, Plaintiff GUY suffered physical injuries, including injuries to his back, and both eyes. In addition to suffering physical injuries to his person, GUY and his wife suffered emotional distress.

FIRST CAUSE OF ACTION: FALSE ARREST

32. Paragraphs 8-31 are incorporated by reference as fully set forth herein
33. LOPEZ arrested GUY intentionally, and GUY was at all times was aware he was being arrested and did not consent to being arrested.
34. As a result of being arrested by LOPEZ and the other NYPD officers, GUY suffered psychological injuries, including emotional distress.

SECOND CAUSE OF ACTION: FALSE IMPRISONMENT

35. Paragraphs 1-34 are incorporated by reference as though fully set forth herein.
36. The officers who arrested the Plaintiff, as described in paragraphs 8-31, intended to confine him. The Plaintiff RICHARD DIEGUEZ was conscious of his confinement and did not consent to it. Moreover, the confinement was not privileged or authorized by any warrant, order, or other legal right.

THIRD CAUSE OF ACTION: ABUSE OF PROCESS

37. Paragraphs 1-36 are incorporated by reference as though fully set forth herein.
38. In arresting GUY as described in paragraphs 8-31, the arresting NYPD officers, including LOPEZ, DOE #1 and DOE #2 were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.
39. In arresting GUY as described in paragraphs 8-31, the arresting NYPD officers, including LOPEZ, DOE #1 and DOE #2, sought either a detriment to GUY or a collateral advantage to themselves that is outside of the legitimate ends of making an arrest.
40. As a result of defendants' abuse of process, GUY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: MALICIOUS PROSECUTION

41. Paragraphs 1-40 are incorporated by reference as though fully set forth herein.
42. In arresting GUY as described in paragraphs 8-31, the arresting NYPD officers, including LOPEZ, DOE #1 and DOE #2, acted with malice and without probable cause.
43. As a result of being maliciously prosecuted by the above referenced arresting NYPD officers, GUY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FIFTH CAUSE OF ACTION: ASSAULT

44. Paragraphs 1-43 are incorporated by reference as though fully set forth herein.
45. Immediately before the arresting NYPD officers, including LOPEZ, DOE #1 and DOE #2 arrested GUY as described in paragraphs 8-31, the officers intentionally placed GUY in apprehension of imminent harmful or offensive contact without his consent.

SIXTH CAUSE OF ACTION: BATTERY

46. Paragraphs 1-45 are incorporated by reference as though fully set forth herein.
47. The NYPD officers who arrested the Plaintiff, as described in paragraphs 8-31, wrongfully touched, grabbed, handcuffed and seized GUY in an excessive manner, subjecting GUY to harmful and offensive bodily contact. The arresting

officers lacked legal cause to grab, handcuff, seize or touch GUY, nor did the he consent to the illegal touching, nor was the touching privileged by law.

SEVENTH CAUSE OF ACTION: 42 U.S.C. 1983 and 1988

48. Paragraphs 1-47 are incorporated by reference as though fully set forth herein.
49. Upon information and belief, the officers who illegally arrested and battered GUY were at all times relevant duly appointed and acting officers of the City of New York Police Department.
50. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
51. GUY is and at all times relevant herein a citizen of the United States and resident of Bronx County in the State of New York. He brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
52. The defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
53. On or about November 23, 2019, as described in paragraphs 8-31, armed officers of the NYPD, including LOPEZ, DOE #1 and DOE #2, while effectuating the seizure of the GUY, searched, seized, assaulted, and battered GUY, and grabbed GUY's person, without a court authorized arrest or search warrant. The officers seized the person of the Plaintiffs during the arrest process in an unlawful and

excessive manner. GUY was falsely arrested and maliciously prosecuted without the police officers possessing probable cause to do so.

54. The above actions of the arresting officers caused the GUY to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to his person,
- (b) Freedom from battery to his person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from malicious prosecution,
- (f) Freedom from the use of excessive force during the arrest process.

55. The arresting officers subjected the GUY to such deprivations, either in a malicious or reckless disregard of the GUY's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

56. The direct and proximate result of the officers' acts are that the GUY has suffered severe and permanent physical and psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

EIGHTH CAUSE OF ACTION: NEGLIGENCE

57. Paragraphs 1-56 are incorporated by reference as though fully set forth herein.

58. At all times hereinafter mentioned, the aforesaid false arrest, false imprisonment, abuse of process, malicious prosecution, assault, and battery were caused solely by the negligence of Defendant CITY, its agents, servants and/or employees.

59. As a result of the negligence by Defendant CITY, Plaintiff GUY sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

NINTH CAUSE OF ACTION: NEGLIGENT SUPERVISION

60. Paragraphs 1-59 are incorporated by reference as though fully set forth herein.

61. Defendant CITY has grossly failed to train and properly supervise its police officers regarding the law of arrest, search and seizure, particularly when its police officers lack a valid arrest or search warrant and where an individual, such as the Plaintiff in the instant case, has not committed a crime and has not resisted arrest.

62. Defendant CITY was negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or probable cause. Defendant CITY was further negligent by failing to implement a policy within its police department instructing police officers to use reasonable force when an individual resists arrest and to not use force when an individual does not resist arrest.

63. Defendant CITY is negligent due to its failure to implement a policy with its police department or actively enforce the law, if any of the following is lacking:

(a) Probable cause must be present before individuals such as the Plaintiff herein can be arrested.

(b) Force cannot be used against an individual who does not physically resist arrest.

(c) An individual who sustains physical injury at the hands of the police should receive prompt medical attention.

64. The foregoing acts, omissions and systematic failures are customs and policies of Defendant CITY which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize, and assault and batter Plaintiff GUY.

TENTH CAUSE OF ACTION: NEGLIGENT HIRING

65. Paragraphs 1-64 are incorporated by reference as though fully set forth herein.

66. Defendant CITY was negligent because prior to and at the time of the acts complained of herein, due to the prior history of the police officers mentioned herein, the CITY knew or should have known of the bad disposition of said police officers or had knowledge of facts that would have put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the CITY and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals, conduct illegal searches, or use excessive force during the arrest process.

WHEREFORE, Plaintiff NAKYE GUY demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

February 19, 2021

Yours, etc.,

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II

Attorneys for Plaintiff

295 Madison Avenue, 12th Floor

New York, NY 10017

(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
February 19, 2021

DocuSigned by:

CAAM4ESAA8AC4C7
NAKYE GUY

Subscribed and sworn to before me, this 19th day of February 2021

Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 11/24/22

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

Index No:

NAKYE GUY

Plaintiff,

-against-

**THE CITY OF NEW YORK,
P.O. JASON LOPEZ (SHIELD #16092)
P.O. JOHN DOE #1
P.O. JOHN DOE #2**

Defendants.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY. 10017
(212) 405-2233

**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

OFFICER JASON LOPEZ (SHIELD #16092)
44TH PRECINCT
2 E. 169th Street,
Bronx, NY 10452